



Province of Alberta

CHILD, YOUTH AND FAMILY ENHANCEMENT ACT

RESIDENTIAL FACILITIES LICENSING REGULATION

Alberta Regulation 161/2004

With amendments up to and including Alberta Regulation 223/2025

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Office Consolidation

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(Consolidated up to 223/2025)

ALBERTA REGULATION 161/2004

Child, Youth and Family Enhancement Act

RESIDENTIAL FACILITIES LICENSING REGULATION

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Interpretation

1(1) In this Regulation,

- (a) “Act” means the *Child, Youth and Family Enhancement Act*;
- (b) “child and youth facility” means any residential facility as defined in section 105.1 of the Act, except a foster home;
- (c) “child and youth facility licence” means a licence authorizing the holder to operate a child and youth facility;
- (d) “foster child” means a child who is in the custody or under the guardianship of a director and is residing in a foster home;
- (e) “foster home” means a residential facility as defined in section 105.1 of the Act
 - (i) that is the home of the holder of a foster home licence, and
 - (ii) in which care is provided to foster children in a family setting;
- (f) “foster home licence” means a licence authorizing the holder to operate a foster home.

(2) For the purposes of Part 3 of the Act, “residential facility licence” means

- (a) a foster home licence, or
- (b) a child and youth facility licence.

Part 1

Licensing of Foster Homes

Definition

2 In this Part, “licence holder” means the holder of a foster home licence.

Application

3(1) An application under section 105.3 of the Act for a foster home licence or a renewal of a foster home licence may be made only by an adult individual.

(2) An application for an initial foster home licence must be accompanied with the following:

- (a) subject to subsection (3), the results of a criminal record check, including a vulnerable sector search and dated not earlier than 6 months prior to the date of the application, with respect to the applicant and any other adult residing with the applicant;
- (b) a written consent, in a form satisfactory to the director, from the applicant and any other adult residing with the applicant authorizing the director to obtain information from any jurisdiction in which that person has resided in the 5 years immediately preceding the date of the application for the purpose of determining if that person has caused a child to be in need of intervention in that jurisdiction;
- (c) a reference from a physician or registered nurse concerning the general physical and mental health of the applicant;
- (d) references from 3 individuals concerning the ability of the applicant to operate a foster home;
- (e) any other information the director considers necessary to enable the director to assess the ability of the applicant to operate a foster home.

(3) Repealed AR 252/2009 s2.

(4) An application for a renewal of a foster home licence must be made to the director at least 60 days before the expiry of the licence and must be accompanied with any information the director considers necessary to enable the director to assess the ability of the applicant to continue to operate a foster home.

AR 161/2004 s3;252/2009

Conditions precedent to issuing licence

4 Before issuing a foster home licence or a renewal of a foster home licence, the director may

- (a) conduct an assessment of the applicant and prepare a report for the purpose of determining the applicant's ability to operate a foster home,
- (b) require the applicant to provide the results of a new criminal record check, including a vulnerable sector search, with respect to the applicant and any other adult residing with the applicant if the most recent criminal record check was carried out more than 3 years prior to the date of the application,
- (c) require the applicant to complete training with respect to the operation of a foster home, and
- (d) require the applicant to provide evidence that the foster home to be operated is in compliance with applicable health and safety legislation.

AR 161/2004 s4;252/2009;166/2020

Issuance of licence

5(1) The director may issue a foster home licence or a renewal of a foster home licence if the director is satisfied that

- (a) neither the applicant nor any other individual residing with the applicant poses a risk to children,
- (b) the applicant is suitable to operate a foster home,
- (c) the environment of the foster home is conducive to the health, safety and well-being of children, and
- (d) the applicant will comply, or has complied, with the Act, this Regulation and any terms or conditions imposed by the director.

(2) An initial foster home licence is issued for a term of one year.

(3) A renewal of a foster home licence is issued for a term not exceeding 3 years.

AR 161/2004 s5;252/2009;118/2022

Number of children

6 The maximum number of foster children that may reside in a licensed foster home

- (a) includes children who are placed in the foster home by a child welfare authority outside Alberta, and
- (b) does not include foster children placed in the foster home on a temporary basis, as determined by the director, where there is a need to provide temporary respite to the licence holder of the foster home where those foster children normally reside.

AR 161/2004 s6;252/2009

Licence not transferable

- 7** A foster home licence is not transferable.

Notice of changes

- 8(1)** A licence holder shall notify the director of the following:

- (a) any significant change to the residence of the licence holder, including
 - (i) a change of location, and
 - (ii) a change that alters the living space of the residence;
- (b) any change in the residents of the foster home;
- (c) any change in circumstances that may affect the ability of the licence holder to continue to operate a foster home.

(2) A notification under subsection (1)(a) of a change in location of the licence holder's residence must be provided to the director within a reasonable time prior to the date of relocation.

(3) If the director has been notified of a change under subsection (1)(a), the director may require the licence holder to provide to the director updated evidence that the foster home is in compliance with applicable health and safety legislation.

(4) If the director has been notified of a change under subsection (1)(b), the director may require the licence holder to provide to the director the results of a criminal record check, including a vulnerable sector search, with respect to any new resident of the foster home.

AR 161/2004 s8;252/2009

Prohibitions

- 9** A licence holder shall not, with respect to a foster child residing in the foster home,

- (a) inflict or permit to be inflicted any form of physical punishment, verbal or physical degradation or emotional deprivation,
- (b) deny any basic necessities, or
- (c) practise or permit to be practised any disciplinary measure expressly prohibited by the director.

AR 161/2004 s9;252/2009

Incident

10(1) In this section, “incident”, in respect of a foster child residing in a foster home, means

- (a) a serious illness of or injury to the child,
- (b) a serious change in the child’s health,
- (c) an error in the administration of prescribed medication to the child,
- (d) an adverse reaction to medication by the child,
- (e) the death of the child,
- (f) an unauthorized absence of the child from the foster home,
- (g) the commission by the child of an offence under an Act of Canada, or
- (h) any other occurrence that may seriously affect the health or safety of the child.

(2) A licence holder shall report each incident to the director in the manner required by the director.

AR 161/2004 s10; 252/2009

Duties of licence holder

11 A licence holder shall ensure that

- (a) the licence holder maintains first aid certification,
- (b) the foster home and grounds are maintained in a manner that ensures the safety of children,
- (c) meals and snacks are provided to foster children in accordance with the Canada Food Guide or a similar food guide, and are provided at appropriate times and in

sufficient quantities in accordance with the needs of each child,

- (d) non-prescription medication and toxic chemicals are stored in a safe manner and are not readily accessible by children,
- (e) prescription medication other than medication that is self-administered by a child is stored in a locked container that is inaccessible by children,
- (f) all firearms are equipped with a secure locking device,
- (g) all ammunition is stored in a locked container separate from any firearm and that the container is inaccessible to children,
- (h) emergency evacuation procedures are made known to all residents, including children where developmentally appropriate, and
- (i) fire extinguishers and smoke alarms are installed and maintained in the foster home in accordance with applicable legislation.

AR 161/2004 s11;252/2009;118/2022

Part 2

Licensing of Child and Youth Facilities

Definition

12 In this Part, “licence holder” means the holder of a child and youth facility licence.

Application

13(1) An application under section 105.3 of the Act for a child and youth facility licence or a renewal of a child and youth facility licence may be made only by

- (a) an adult individual,
- (b) a partnership, or
- (c) a corporation.

(2) An application for an initial child and youth facility licence must be accompanied with the following:

- (a) the results of a criminal record check, including a vulnerable sector search and dated not earlier than 6 months prior to the date of the application, with respect to the following:
 - (i) if the applicant is an individual, the applicant;
 - (ii) if the applicant is a partnership, the partners;
 - (iii) if the applicant is a corporation, the chief executive officer;
- (b) repealed AR 252/2009 s6;
- (c) if the applicant is an individual,
 - (i) a written consent, in a form satisfactory to the director, from the applicant authorizing the director to obtain information from any jurisdiction in which the applicant has resided in the 5 years immediately preceding the date of the application for the purpose of determining if the applicant has caused a child to be in need of intervention in that jurisdiction, and
 - (ii) references from 3 individuals concerning the ability of the applicant to operate a child and youth facility;
- (d) a list of contract and staff positions, including a job description for each position and the qualifications and experience required for each position;
- (e) a written description of the applicant's proposed program and procedures, including
 - (i) the goals and objectives of the program;
 - (ii) the applicant's organizational structure;
 - (iii) program, financial and personnel administration;
 - (iv) recruitment and screening of employees and volunteers;
 - (v) admission and discharge criteria;
 - (vi) planning, monitoring and evaluation of care to be provided to children;
 - (vii) maintenance of records of children residing in the facility;

- (viii) any health or educational services available to children residing in the facility;
- (ix) supervision of children;
- (x) security of children and staff;
- (xi) disciplinary measures and use of restraints;
- (xii) use of isolation;
- (xiii) emergency procedures;
- (xiv) handling of allegations of abuse by staff and volunteers;
- (xv) administration of medication;
- (xvi) orientation process for children;
- (f) any other information the director considers necessary to enable the director to assess the ability of the applicant to operate a child and youth facility.

(3) An application for a renewal of a child and youth facility licence must be made to the director at least 60 days before the expiry of the licence and must be accompanied with the following:

- (a) if there has been a change in any of the information referred to in subsection (2)(d) or (e) since that information was last provided by the applicant, a statement of the changes;
- (b) if the applicant is a partnership or corporation, any change in the partners, board members or chief executive officer since that information was last provided by the applicant;
- (c) any other information the director considers necessary to enable the director to assess the ability of the applicant to continue to operate a child and youth facility.

AR 161/2004 s13;252/2009

Conditions precedent to issuing licence

14 Before issuing a child and youth facility licence or a renewal of a child and youth facility licence, the director may require the applicant to provide

- (a) if the applicant is a partnership or corporation, evidence of the applicant's partnership or corporate status, and

- (b) evidence that the child and youth facility to be operated is in compliance with applicable zoning, health and safety legislation.

AR 161/2004 s14;252/2009

Issuance of licence

15(1) The director may issue a child and youth facility licence or a renewal of a child and youth facility licence if the director is satisfied that

- (a) the applicant and the individuals who will be associated with the operation of the child and youth facility are suitable to operate a child and youth facility,
- (b) the environment of the child and youth facility is conducive to the health, safety and well-being of children,
- (c) the premises of the child and youth facility provide children with adequate space for activities of normal daily living, and
- (d) the applicant will comply, or has complied, with the Act, this Regulation and any terms or conditions imposed by the director.

(2) An initial child and youth facility licence is issued for a term of one year.

(3) A renewal of a child and youth facility licence is issued for a term not exceeding 3 years.

AR 161/2004 s15;252/2009;118/2022

Licence not transferable

16 A child and youth facility licence is not transferable.

Notice of changes

17(1) A licence holder shall notify the director forthwith of the following:

- (a) if the licence holder is a partnership or a corporation, any change in the partners or chief executive officer;
- (b) any significant change initiated by the licence holder in the licence holder's program and procedures.

(2) If the director has been notified of a change under subsection (1)(a), the director may require the licence holder to provide to the director the results of a criminal record check, including a

vulnerable sector search, with respect to the new partner or chief executive officer.

AR 161/2004 s17;252/2009

Conditions relating to staff

18(1) A licence holder shall ensure that each staff member who works directly with or has unsupervised access to children residing in the facility and each volunteer who has unsupervised access to children residing in the facility

- (a) is an adult,
- (b) provides character references satisfactory to the licence holder,
- (c) provides a criminal record check, including a vulnerable sector search, and an intervention record check to the licence holder, both dated not earlier than 6 months prior to commencing work at the facility, and every 3 years thereafter,
- (d) has, within 3 months of commencing work at the facility, completed a first aid course that includes CPR training, including administering CPR to children,
- (e) maintains the first aid certification referred to in clause (d), and
- (f) has received information with respect to safety precautions to be followed when working alone.

(2) In subsection (1)(c), “intervention record check” means a review of records by a director to determine if an individual has caused a child to be in need of intervention.

AR 161/2004 s18;252/2009

Records

19 A licence holder shall, in a manner satisfactory to the director,

- (a) maintain a record of admissions to the facility and discharges and absences from the facility, and
- (b) maintain personnel records of all employees and volunteers.

AR 161/2004 s19;252/2009

Other records

20(1) A licence holder shall maintain a record for each child who is in the custody or under the guardianship of a director and

residing in the facility for the period during which the child resides in the facility.

(2) A record referred to in subsection (1) must include the following:

- (a) the name, birth date and gender of the child;
- (b) the date of and reason for admission or discharge;
- (c) the name, address and telephone number of a director's delegate who is responsible for the child;
- (d) the facility's plan of care for the child;
- (e) a record of all case conferences, including admission, planning, family and discharge conferences;
- (f) records of any medical, dental, optical, physical, developmental or emotional conditions relevant to the care of the child;
- (g) an immunization and health care history of the child, including appointment dates, reasons for referral, names of physicians and follow-up required;
- (h) a record of any therapeutic diet prescribed for the child by a physician;
- (i) a record of the child's school attendance, including the child's report cards and a contact name and phone number for the school the child is attending;
- (j) daily observations and comments by employees and volunteers about the child;
- (k) a record of any isolation of the child in accordance with section 24;
- (l) a record of any physical restraint of the child;
- (m) a list of approved contacts for the child;
- (n) any other information relative to the child considered appropriate by the licence holder or provided or required by a director.

(3) The director may exempt a licence holder from the requirements of subsection (1) in respect of a child who is placed in the child and youth facility on a temporary and short-term basis.

AR 161/2004 s20;252/2009

Notice of policies and procedures

21 A licence holder shall keep a copy of facility policies and procedures on the premises of the facility, and shall make the policies and procedures available to employees, volunteers, residents, guardians of children and the director.

AR 161/2004 s21;252/2009

Providing information about facility

22 A licence holder shall ensure that on admission to a child and youth facility, a child receives information appropriate to the child's developmental age with respect to

- (a) the rules of the facility, and
- (b) the complaint process of the facility.

Prohibitions

23 A licence holder shall not, with respect to a child residing in the facility,

- (a) inflict or permit to be inflicted any form of physical punishment, verbal or physical degradation or emotional deprivation,
- (b) deny any basic necessities,
- (c) use or permit the use of face-down restraints,
- (d) use or permit the use of any other form of physical restraint unless the purpose is to protect the child or others and, in that case, only to the degree and duration necessary,
- (e) encourage or condone punishment of the child by any other child,
- (f) exclude or permit the exclusion of the child from entry to the facility as a form of punishment, or
- (g) practise or permit to be practised any disciplinary measure expressly prohibited by the director.

AR 161/2004 s23;252/2009

Isolation of child

24(1) A licence holder shall not establish a room for the purpose of isolating a child without the approval of the director.

(2) A licence holder shall ensure that

- (a) a child is isolated only to ensure the child's safety or the safety of others,
- (b) a child is not kept in an isolation room without adult supervision,
- (c) the name of the child, the length of isolation and the reason for isolation are recorded and placed on the child's file, and
- (d) procedures approved by the director for the isolation of children are followed.

AR 161/2004 s24;252/2009

Incident

25(1) In this section, "incident", in respect of a child who is in the custody or under the guardianship of a director and residing in a child and youth facility, means

- (a) a serious illness of or injury to the child,
- (b) a serious change in the child's health,
- (c) an error in the administration of prescribed medication to the child,
- (d) an adverse reaction to medication by the child,
- (e) the death of the child,
- (f) an unauthorized absence of the child from the facility,
- (g) the commission by the child of an offence under an Act of Canada, or
- (h) any other occurrence that may seriously affect the health or safety of the child.

(2) A licence holder shall

- (a) report each incident to the director forthwith in the manner required by the director, and
- (b) institute any corrective measures that may be required to prevent a similar incident from occurring in the future.

AR 161/2004 s25;252/2009

Emergency procedures

26 A licence holder shall ensure that

- (a) emergency telephone numbers and procedures are posted in a prominent place in the facility, and

- (b) emergency evacuation procedures are made known to all employees and volunteers and to children where developmentally appropriate.

AR 161/2004 s26;252/2009

Safety of facility

27 A licence holder shall ensure that the facility and grounds are maintained in a manner that ensures the safety of children.

Provision of food

28 A licence holder shall ensure that

- (a) staff and volunteers are aware of any food allergies or special dietary requirements of the children residing in the facility;
- (b) meals and snacks are provided to the children residing in the facility in accordance with the Canada Food Guide or a similar food guide, and are provided at appropriate times and in sufficient quantities in accordance with the needs of each child.

Medications

29(1) A licence holder shall ensure that

- (a) a record is kept of all medications prescribed for a child,
- (b) subject to subsection (2), prescription medications are administered to a child only under the general supervision of a staff member, and in accordance with the prescription instructions, and
- (c) a record is kept of all medication administered to each child, other than self-administered medication, including
 - (i) the type of medication,
 - (ii) in the case of prescription medication, the period for which the medication is prescribed, and
 - (iii) the dosage to be administered, when each dosage is administered and the name of the staff member who administered the dosage.

(2) A licence holder may allow a child to assume responsibility for self-administration of medication if authorized by the child's guardian.

AR 161/2004 s29;252/2009

Storage of medication

30 A licence holder shall ensure that

- (a) all prescription medication other than medication that is self-administered is stored in a locked container that is inaccessible by children,
- (b) non-prescription medication and toxic substances are stored in a safe manner and are not readily accessible by children, and
- (c) universal precautions are followed by staff and volunteers.

Dangerous items in facility

31 A licence holder shall ensure that firearms, weapons, ammunition and explosive substances are not permitted in the facility.

Appeal

31.1 A licence holder may appeal to the Appeal Panel the following:

- (a) terms or conditions imposed on a renewal of a licence for a child and youth facility;
- (b) a refusal to renew a licence for a child and youth facility;
- (c) an order after inspection with respect to a licence for a child and youth facility;
- (d) the variation, suspension or cancellation of a licence for a child and youth facility.

AR 252/2009 s12

Part 3

Coming into Force and Expiry

Coming into force

32 This Regulation comes into force on the date on which section 94 of the *Child Welfare Amendment Act, 2003* is proclaimed in force.

33 Repealed AR 223/2025 s2.

Schedule Repealed AR 166/2020 s3.



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